

Stanwood pauses Flock cameras amid public records lawsuits

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EVERETT — The city of Stanwood has paused use of its Flock cameras in light of questions over whether footage is subject to public records requests under state law. The Stanwood City Council approved its \$92,000 contract with Flock Safety in November 2024. In February, the city installed 14 automatic license plate reading cameras. The cameras were operating for about four months before the city turned them off in May, City Administrator Shawn Smith said. In April, an individual requested all Flock camera footage in Stanwood within a one-hour window on March 30. In light of the request, the city decided in June to seek a court judgment that Flock footage either is not public record or is exempt from the public records act for privacy reasons.

Stanwood is seeking the judgment along with the city of Sedro-Woolley, which also received a records request for Flock footage from the same individual, Jose Rodriguez. The cities filed the complaint in Skagit County Superior Court.

In response, Rodriguez filed a lawsuit against Stanwood in Snohomish County Superior Court, alleging the city is violating the Public Records Act by not providing the footage. “No exemption to the PRA requirements apply in this case and public policy favors timely disclosure, and in no way hinders disclosure, of the records requested,” the complaint read. All Flock camera footage is stored in the Flock Safety cloud system, Stanwood and Sedro-Woolley attorneys wrote in their complaint. Cities only have access to data the officers search for, the complaint read. Stanwood and Sedro-Woolley argue that Flock footage is only public record once a public agency extracts and downloads the data. The Public Records Act states that public records include information “prepared, owned, used, or retained” (<https://app.leg.wa.gov/rcw/default.aspx?cite=42.56.010>) by an agency. “Requiring public agencies to generate a new search in the Flock cloud system for the sole purpose of accessing and downloading data requested under the PRA, data which the agency had not previously accessed, would require the agency to create new public records not in existence at the time of the request,” the complaint read.

If a judge decides the footage is public record, the cities argue it should still be exempt from requests under the Public Records Act. The law [exempts certain intelligence information](https://app.leg.wa.gov/rcw/default.aspx?cite=42.56.240) (<https://app.leg.wa.gov/rcw/default.aspx?cite=42.56.240>) that could jeopardize the effectiveness of law enforcement or a person's right to privacy if released.

"If the data becomes public record, that would allow nefarious actors to carry out their act," Stanwood resident Tim Schmitt said in a July interview. "So imagine tracking your ex-spouse or a person you broke up with under difficulty, it would allow all sorts of malicious mischief against innocent individuals."

Schmitt is a member of the Stanwood City Council and said his opinions do not reflect those of the council or the city.

State law does not explicitly exempt automated license plate reader data from public records. It does have explicit [exemptions for red-light camera data](https://app.leg.wa.gov/RCW/default.aspx?cite=46.63.220)

(<https://app.leg.wa.gov/RCW/default.aspx?cite=46.63.220>). In July, Stanwood City Attorney wrote a letter to State Sen. Ron Muzzall, R-Oak Harbor, asking him to sponsor or support legislation to create a specific exemption for automated license plate reader data in the Public Records Act.

Schmitt was the sole vote against the Flock contract in November 2024. Part of the reason for his vote, he said, was uncertainty over public records laws.

"I had this doubt in the back of my mind," he said.

Schmitt also raised concerns that the contract was too expensive, especially compared to other cities, he said. For example, Mount Vernon has six Flock cameras for a population of about 35,000 and a land area of about 12 square miles. Stanwood has 14 cameras for a population of about 8,000 and a land area of about 3 square miles.

While the cameras are turned off, Stanwood is not currently making payments to Flock Safety, Smith said.

In Stanwood, Flock cameras have helped identify a shoplifter that stole \$1,000 from small businesses, apprehend a suspect in a shooting in a neighboring jurisdiction and locate an elderly person with dementia within 10 minutes, the complaint read.

The litigation comes as cities across the state and country continue to sign contracts with Flock Safety. According to the company, the cameras are operating in [more than 5,000 communities](https://www.flocksafety.com/products/national-lpr-network) (<https://www.flocksafety.com/products/national-lpr-network>) nationwide (<https://www.flocksafety.com/products/national-lpr-network>). Most cities in Snohomish County have implemented Flock cameras within the past year.

In Mountlake Terrace, residents have continued to [voice their opposition to the](https://www.heraldnet.com/news/mountlake-terrace-public-express-ongoing-ire-with-future-flock-system/) (<https://www.heraldnet.com/news/mountlake-terrace-public-express-ongoing-ire-with-future-flock-system/>) technology (<https://www.heraldnet.com/news/mountlake-terrace-public-express-ongoing-ire-with-future-flock-system/>), citing reports (<https://www.9news.com/article/news/local/flock-federal-immigration-agents-access-tracking-data/73-a8aee742-56d4-4a57-b5bb-0373286dfef8>) of federal agencies accessing Flock data (<https://www.theguardian.com/us-news/2025/mar/11/ice-car-trackers-sanctuary-cities>) for immigration enforcement. The City Council [voted to approve a contract](https://www.heraldnet.com/news/mountlake-terrace-approves-flock-camera-system-after-public-pushback/) (<https://www.heraldnet.com/news/mountlake-terrace-approves-flock-camera-system-after-public-pushback/>) with Flock Safety in June.

At a [Sept. 4 meeting](https://www.youtube.com/watch?v=FvXzAHHI-lw&t=6276s) (<https://www.youtube.com/watch?v=FvXzAHHI-lw&t=6276s>), Mountlake Terrace City Council member William Paige Jr. expressed regret for voting for the contract in June. Last month, Flock CEO Garrett Langley [wrote in an Aug. 25 statement](https://www.flocksafety.com/blog/ensuring-local-compliance) (<https://www.flocksafety.com/blog/ensuring-local-compliance>) it had pilot programs with U.S. Customs and Border Patrol and Homeland Security Investigations. The program was intended to help combat human trafficking and fentanyl distribution, Langley said. The company has since paused the program, he said.

"We clearly communicated poorly," Langley said. "We also didn't create distinct permissions and protocols in the Flock system to ensure local compliance for federal agency users. I appreciate the sensitivities surrounding local and federal cooperation on law enforcement matters, and I understand that in order to allow communities to align with their laws and societal values, these definitions and product features are critical."

At the Sept. 4 meeting, Paige said he doesn't trust Flock Safety and no longer wants to do business with the company.

"We all heard concerns that day — and before and after that day — from the community about making sure Homeland Security and Customs and Border Protection would not have access to our data," Paige said. "We had a Flock representative right here listening to those concerns. And yet, at that same time, Flock already had a contract that allowed those federal agencies to access data. They never shared that with us."

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